

BEFORE THE BOARD OF SOCIAL WORK OF THE STATE OF IOWA

IN THE MATTER OF	)	
THE APPLICATION	)	PRELIMINARY NOTICE OF
FOR LICENSURE OF	)	INTENT TO DENY LICENSURE
	)	
JAMES E. WALKER, APPLICANT	)	
	)	

TO: James E. Walker

YOU ARE HEREBY NOTIFIED that on August 11, 2008, the Iowa Board of Social Work voted to deny your application for an Iowa license to practice independent level social work. The intent to deny licensure is based upon the following:

LEGAL GROUNDS

Iowa Code 154C.1 “c” provides that “standards for supervision shall be determined by the board of social work.”

645 IAC 282(17) “a” states: “A licensee shall not practice without receiving supervision as needed, given the licensee’s level of practice, experience, and need.”

FACTUAL CIRCUMSTANCES

On November 5, 2001, the Board of Social Work filed charges against Mr. Walker’s master’s level license to practice social work for unethical conduct and dual relationships.

On December 18, 2001, Mr. Walker applied for independent level licensure.

On August 12, 2002, a settlement agreement was entered into with the Board and Mr. Walker’s license to practice social work was placed on probation for two years, subject to specific terms and conditions that included monitoring of his social work practice. Due to a delay in seeking and obtaining a social work position, the two-year monitoring and probation period was delayed.

On June 30, 2004, the Board corresponded with Mr. Walker clarifying that the monitoring period while he was on probation would not be counted toward LISW licensure. His LISW supervisor had indicated to the Board that she was monitoring Mr. Walker’s social work practice according to the terms of his settlement agreement with the Board, and was not providing supervision toward independent level licensure. It was explained to Mr. Walker and his supervisor, that there were distinct differences in the goals for LISW licensure and the goals outlined in his settlement agreement. It was

recommended to Mr. Walker that he first fulfill the goals of his probationary period, prior to starting supervision toward his LISW. Mr. Walker indicated to the Board that he would not be pursuing LISW licensure due to his intent was to move out-of-state. That information was confirmed with Mr. Walker in correspondence from the Board on May 16, 2005.

Upon completion of his two year-monitoring period, his probation was successfully completed and he was released from probation on December 12, 2007.

The Iowa Board of Social Work received an application for independent level licensure from Mr. Walker on June 10, 2008. Mr. Walker's current application contains **Supervisor Report** forms from two LISW supervisors. The first for the period of July 14, 2005 to December 16, 2006. The second from January 1, 2007 to March 10, 2008.

On August 11, 2008, the Board denied this Mr. Walker's application for independent level licensure on the basis that he has not received adequate supervision toward the LISW given his "level of practice, experience, and need."

NOTICE OF APPEAL RIGHTS

Pursuant to the provisions of 645 IAC 11.32, you may appeal the Board's preliminary notice of denial of license by serving a notice of appeal and request for hearing upon the board not more than thirty days following the date of mailing of this notice. The request for hearing shall specifically describe the facts to be contested and determined at the hearing. The hearing shall be held pursuant to the process outlined at 645 IAC Chapter 11. If an appeal is not filed within this time period, this preliminary notice of intent to deny licensure will become final.

This preliminary notice of intent to deny licensure is approved by the board on August 25, 2008.